

Ajab Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 December 2015 · Writ-C No. 64243 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer dissatisfied with a demand bill of the Electricity Department, for whatever reason, must seek remedy under Clause 6.5 of the Electricity Supply Code, 2005. The writ petition was dismissed with liberty to pursue that statutory course.

FACTUAL SUMMARY

Ajab Singh filed Writ-C No. 64243 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and two others, challenging a demand bill raised by the Electricity Department. Counsel for the parties were heard. The order records neither the billed amount, the connection, nor the ground of challenge. The Division Bench treated the grievance as dissatisfaction with the demand, for whatever reason, and did not examine the bill on merits. The petition was disposed of on 1 December 2015.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

demand-bill-objection-under-clause-6.5

HOLDING

If a consumer is not satisfied with a demand bill raised by the Electricity Department, for whatever reason, the remedy is under Clause 6.5 of the Electricity Supply Code, 2005. The writ petition is dismissed with liberty to seek that remedy.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND BILL

Not examined on merits; relegated to Clause 6.5. ¶ 1